

The Steel And Steel Products (Quality Control) Order, 2007

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Union of India - Act

The Steel And Steel Products (Quality Control) Order, 2007

UNION OF INDIA

India

The Steel And Steel Products (Quality Control) Order, 2007

Rule THE-STEEL-AND-STEEL-PRODUCTS-QUALITY-CONTROL-ORDER-2007 of 2007

Published on 12 November 2007

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The Steel And Steel Products (Quality Control) Order, 2007

Published vide Notification Gazette of India, Extra Part 2, Section 3(ii), dated 12.11.2007

1651.

No.S.O. 1908(E), dated November 12,2007. - In exercise of the powers conferred by Section 14 of the Bureau of Indian Standards Act, 1986 (63 of 1986), Central Government after consulting the Bureau of Indian Standards hereby makes are following Order, namely:

1.

Short title and commencement.

(1)

This Order may be called the Steel and Steel Products (Quality Control) Order, 2007.

(2)

This Order shall come not force after a period of six months from the date of its publication in the Official Gazette.

2.

Definitions.

- In this Order, unless the context otherwise requires,

(a)

"Act" means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"Appropriate Authority" means any officer not below the rank of an Under Secretary to the Government of India or an officer not below the rank of Scientist C (Deputy Director) in the Bureau of Indian Standards or an officer not below the rank of a General Manager, District Industries Centre of a State Government as may be appointed by the Central Government by a notification published in the Official Gazette to implement the provisions of this Order;

(c)

"Bureau" means the Bureau of Indian Standards;

(d)

"dealer" in relation to Steel and Steel Products, means a person who, or a firm or a Hindu undivided family which, carries on, directly or otherwise the business of buying, selling, supplying or distributing any such Structural Steel Sections, Galvanized steel sheets, High Strength deformed steel bars and wires, Steel wires and strands for stressed concrete, Electrical steel sheets and strips, Steel plates for pressure vessels, Electrolytic tinplate whether in cash or for deferred payment or for commission, remuneration or other valuable consideration;

(e)

"manufacturer", in relation to Steel and Steel Products, means a person who or a firm or a Hindu undivided family which produces, makes, assembles, or manufactures, any such structural steel sections, galvanized steel sheets, high strength deformed steel bars and heirs and steel wires and strands for pre stressed concrete, electrical steel sheets and strips, steel plates for pressure vessels, electrolytic tinplate and includes a person who, or a firm or Hindu undivided family which claims such structural steel sections, phenized steel sheets, high strength deformed steel bars and wires, steel wires and strands for pre-stressed concrete, electrical steel sheets and strips, steel plates for pressure vessels, electrolytic tinplate to be produced made, assembled or manufactured by such person or firm or Hindu undivided family, as the case may be;

(f)

"Schedule" means the Schedule annexed to this Order;

(g)

"Specified Standard" in relation to steel and steel products means the standard is specified in the corresponding entry in column (1) of the Schedule.

(h)

"State Government" in relation to a Union territory, means the Administrator thereof;

(i)

"steel and steel products" mean the items specified in column (2) of the Schedule;

(j)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Prohibition regarding manufacture, storage sale and distribution etc.

(1)

No person shall by himself or through any person on his behalf manufacture or store for sale, sell or distribute any steel and steel products given in the Schedule, which do not conform to the specified standards and do not bear standard mark of the Bureau of obtaining certification marks licence:

Provided that nothing in this Order shall apply in relation to export of steel and steel products required for export, which conform to any specification required by the foreign buyer and such specification shall not in any case be less than the specified standard.

(2)

The sub-standard or defective steel and steel products, which do not conform to the specified standard shall be

deformed by the manufacturer by cutting into length less than 1.5 meters and disposed of as scrap within three months.

4.

Obligation for certification.

(1)

All manufacturers of steel and steel product shall make an application to the Bureau for obtaining licence for use of the standard mark, within forty-five days of the issue of this Order, if not already obtained.

(2)

The grant of licence by the Bureau for use of the standard mark shall be as per the provisions of the Act and rules and regulations made there under.

(3)

When any person by himself or through any person on his behalf proposes manufacture steel and steel products specified in column (2) of the Schedule shall commence regular production only after obtaining a valid licence from Bureau for the use of standard mark.

(4)

Consequent to the expiry of any licence or cancellation thereof by the Bureau for one or more of the steel and steel products mentioned in column (2) of the Schedule the Bureau shall inform the same to the Appropriate Authority.

5.

Power to call for information, etc.

- The Appropriate Authority may, with view to securing compliance with this Order

(a)

require any person engaged in the manufacturer, storage for sale, sale distribution of any steel and products to give such information as he deems necessary relating to the manufacture, storage for sale, sale or distribution of any steel and steel products for the implementation of this Order or require any such person to furnish him samples of any such steel and steel products.

(b)

inspect or cause to be inspected any books or other documents and other steel and steel products kept by or belonging to or in the possession or under the control any person engaged in the manufacture, storage for sale, sale or distribution of any steel and steel products.

6.

Testing of samples.

- Samples of any steel and steel products bearing the standard mark and drawn by the Appropriate Authority, for ascertaining whether they are of the specified standard, shall be tested in the laboratory approved by the Bureau and in the manner as may be determined by the Bureau.

7.

Power to issue direction to manufacturer and dealers or sellers.

- The Appropriate Authority may issue such directions to manufacturers and dealers sellers, consistent with the provisions of the Act or this Order, as may be necessary to carrying out the purposes of this Order.

8.

Compliance of directions.

- Every person engaged in the manufacture, storage sale, sale or distribution of any steel and steel products given in the Schedule to whom any direction is issued under this Order, shall comply with such direction.

9.

Obligation to furnish information.

- No manufacturer or dealer shall with intent to evade the provisions of this Order, refuse to give any information lawfully demanded from him under clause 5 or conceal, destroy, mutilate or deface any books or documents or any steel and steel products, kept by, or in the possession or control of, such person.

Schedule

[See clause 2 (i)]

List of steel products under mandatory BIS certification

1.

For power distribution

Indian standard number

Title

1

2

648

Cold rolled Non-oriented electrical steel sheet and strip-Fully processed type.

3024

Grant oriented electrical steel sheets and stripes.

15391

Cold rolled non-oriented electrical steel sheet and strip-Semite processed type.

2.

For health and safety

Indian standardnumber

Title

1

2

22002

Steel plates for pressure vessels for intermediate and high temperature service including boilers.

2041

Steel plates for pressure vessels used at moderate and temperature.

3.For infrastructure (including railways) and constructional steel

Indian standard number

Title

1

2

277

Galvanized steel sheets (plain and corrugated).

1786

Specification for high strength deformed steel bard and wires for concrete reinforcement.

2062

Hot rolled low, medium and high tensile structural steel excluding bars and rods of diameter/ thickness less than 6mm and structural (angle) below 50 mm x 50 mm x 6 mm.

13620

Specification for fusion bonded epoxy coated reinforcing bars.

1785(Pt.2)

Specification for plain hard-drawn steel wire for pre-stressed concrete, part 2 as drawn wire.

6003

Specification for intended wire for pre-stressed concrete.

6006

Specification for uncoated stress relieved strand for pre-stressed concrete.

14268

Specification for uncoated stress relieved low relaxation seven ply strand for pre-stressed concrete.

2830

Carbon steel cast billet ingots, billets, blooms, blooms and slabs for re-rolling into steel for general structural purposes.

2831

Carbon steel cast billet ingots, billets, blooms, and slabs for re-rolling into low tensile structural steel.

4. For storage/cooking of food products.

Indian standard number

Title

1

2

1993

Cold reduced electrolytic tinplate.

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